Payment Plan Agreement

PAYING A BALANCE IN INSTALLMENTS

This agreement is made on _____ between _____ (the **"Business"**) and _____ (the **"Customer"**).

1. What is owed

1.1 The Customer owes the Business a balance of _____ for _____ (the **"Balance"**).

1.2 The Customer agrees that the Balance is correct and owed, and that the Business has not agreed to reduce it, except as set out below. _____

2. How the Customer will pay

2.1 The Customer will pay the Balance in _____ equal installments, paid _____. The first payment is due on _____.

2.2 The amount of each installment and its due date is shown below.

#	DUE DATE	AMOUNT (US DOLLARS)
1	_____	_____
2	_____	_____
3	_____	_____
4	_____	_____

2.3 The Customer may pay earlier, or pay more, at any time without charge. Extra payments reduce the last installments first.

3. The first payment

3.1 The first installment, in US dollars: _____. The Customer pays it by card, on a secure page, before signing: _____

3.2 The Business will give a receipt for each payment.

4. If a payment is missed

4.1 If an installment is not paid within _____ of its due date, the Business will write to the Customer. If it is still not paid _____ after that, the whole of the unpaid Balance becomes due at once.

4.2 The Business will not charge interest or fees on the Balance while the Customer is keeping to this plan, unless the law or the original agreement says it may.

_____

5. If the Customer's situation changes

5.1 If the Customer expects to have trouble paying, the Customer should say so before a due date. The Business will consider in good faith a change to the plan, which takes effect only if it is agreed in writing by both sides.

6. What stays the same

6.1 Nothing in this agreement is an admission by the Customer that the Balance is more than is properly owed, and nothing in it limits the Customer's rights under the law to dispute a charge or to ask for information about how the Balance was calculated.

6.2 While the Customer keeps to this plan, the Business will not pass the Balance to a collection agency, start a court case to recover it, or report it as overdue to a credit reporting agency, unless the law requires it to.

7. Receipts and statements

7.1 The Business will give the Customer a receipt for each payment and, on request, a statement showing what has been paid, what is left and when the next payment is due, within seven days of the request.

7.2 When the last installment has been paid, the Business will confirm in writing that the Balance has been paid in full and that nothing more is owed under this plan.

8. The whole agreement

8.1 This agreement is the whole agreement about the repayment of the Balance and replaces any earlier plan. It does not waive any right the Business has under the original agreement or the law, except that the Business will not demand the Balance faster than this plan provides for as long as the Customer keeps to it.

9. Governing law

9.1 This document, and any dispute arising out of it, is governed by the laws of the State of _____, without regard to its rules about conflicts of laws.

10. General

10.1 **Changes in writing.** A change to this agreement is effective only if it is in writing and signed by both sides. An email exchange does not change it unless each side expressly says that it is a change and signs it electronically.

10.2 **Counterparts and electronic signatures.** This agreement may be signed in separate copies, which together are one document. A signature made electronically, including by typing, drawing or selecting a signature, is as effective as a handwritten one, and each side agrees to sign and keep this agreement in electronic form.

Signatures

By signing below, each party agrees to this document and confirms that the person signing has the authority to do so.

BUSINESS

_____

PRINTED NAME

_____

TITLE OR CAPACITY

_____

SIGNATURE

_____

DATE

CUSTOMER

_____

PRINTED NAME

_____

SIGNATURE

_____

DATE